

Hanuman Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 December 2023 · 2023:AHC:235454-DB · Writ - C No. 41839 of 2023 · **Writ disposed; liberty under clause 6.5 and G.O. dated 4 February 2023**

HEADNOTE

A writ against an electricity demand of Rs. 2,14,280, which the department split into Rs. 1,28,808 of consumption for 72 months and the balance as surcharge and interest, was disposed of without interference. The consumer was left to clause 6.5 of the Electricity Supply Code and to the Government Order dated 4 February 2023.

FACTUAL SUMMARY

Hanuman Singh's electricity connection was made functional in 2014 and was disconnected in 2019. On 11 December 2023 the Electricity Department placed instructions showing a charge of Rs. 2,14,280. Its counsel stated that a monthly bill of Rs. 1,789 over 72 months of use would total Rs. 1,28,808, and that the balance was surcharge and interest. Singh sought the High Court's interference with that demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ against a disputed electricity bill

HOLDING

No interference was warranted where the department attributed Rs. 1,28,808 of a Rs. 2,14,280 demand to 72 months of consumption at Rs. 1,789 a month and the balance to surcharge and interest. A consumer still aggrieved by the bill may approach the Electricity Department under clause 6.5 of the Electricity Supply Code, and may also approach the Government under the Government Order dated 4 February 2023. The writ was disposed of on that basis. ¶ 1

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5

The Division Bench declined to interfere with the Rs. 2,14,280 demand and left the petitioner to clause 6.5 of the Supply Code, with further liberty to approach the Government under the order of 4 February 2023. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHARGE OF RS. 2,14,280, INCLUDING SURCHARGE AND INTEREST ABOVE THE STATED CONSUMPTION FIGURE OF RS. 1,28,808, IS PAYABLE.

The Court did not examine the demand and left the petitioner to clause 6.5 and to the Government Order dated 4 February 2023. ¶ 1